

STATE OF NEW YORK

2439--C

2025-2026 Regular Sessions

IN ASSEMBLY

January 16, 2025

Introduced by M. of A. EPSTEIN, SEAWRIGHT, GONZALEZ-ROJAS, REYES, BURDICK, PAULIN, SIMON, WOERNER, LEVENBERG, KELLES, CUNNINGHAM, DE LOS SANTOS, OTIS, GLICK, McMAHON, TAPIA, RAGA, SIMONE, SHRESTHA, JACOBSON, ROSENTHAL, SHIMSKY, LEE, WEPRIN, LAVINE, MAMDANI, HEVESI, FORREST, LASHER, CRUZ, GALLAGHER, BURROUGHS -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to establishing a reproductive health services training grant program; and to amend the state finance law, in relation to establishing the reproductive health training and education fund

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public health law is amended by adding a new section
2 2807-nn to read as follows:

3 § 2807-nn. Reproductive health training and education grant program.

4 1. As used in this section:

5 (a) "eligible participant" means any licensee for whom performing
6 abortion care is within their scope of practice and is authorized by law
7 to practice in this state, including, but not limited to a physician, a
8 nurse practitioner, licensed midwife, or a physician assistant, or an
9 intern or resident who is employed by a hospital or otherwise enrolled
10 in an accredited graduate medical education program;

11 (b) "program" shall mean a reproductive health services training
12 and education grant program; and

13 (c) "eligible providers" shall mean community-based organizations
14 providing reproductive health care, hospital-based sites providing

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD04174-07-5

1 reproductive health care, continuing education programs for qualified
2 providers through professional associations or clinical education
3 programs.

4 2. The commissioner, shall establish a reproductive health services
5 training and education grant program for eligible participants to
6 receive clinical training in the performance of abortion and related
7 reproductive health services. Such eligible participants shall meet
8 professionally recognized training standards, comply with applicable
9 state law and regulations, and shall be capable of providing culturally
10 congruent care and implicit bias training.

11 3. The commissioner is authorized, within amounts appropriated for
12 such purpose to make grants in accordance with this subdivision. Such
13 grants may be used for administration, faculty recruitment and develop-
14 ment, start-up costs and costs incurred teaching reproductive health
15 care.

16 4. The commissioner shall submit a report, on January first, two thou-
17 sand twenty-seven and annually thereafter, to the governor and to the
18 legislature which shall include, but not be limited to, the total amount
19 of grants issued, the number of eligible participants, the number of
20 eligible providers, and the region of the state where the eligible
21 provider is located. Notwithstanding any other section of law, the
22 commissioner shall not report any information related to identifying
23 information of eligible participants in the program.

24 § 2. The state finance law is amended by adding a new section 99-ss to
25 read as follows:

26 § 99-ss. Reproductive health training and education fund. 1. There is
27 hereby established in the joint custody of the state comptroller and
28 commissioner of taxation and finance a special fund to be known as the
29 "reproductive health training and education fund".

30 2. Such fund shall consist of all moneys appropriated thereto from any
31 other fund or source pursuant to law. Nothing contained in this section
32 shall prevent the state from receiving grants, gifts or bequests for the
33 purposes of the fund as defined in this section and depositing them into
34 the fund according to law.

35 3. Moneys shall be payable from the fund on the audit and warrant of
36 the comptroller on vouchers approved and certified by the commissioner
37 of health.

38 4. The moneys in such fund shall be expended for the reproductive
39 health services training and education grant program in accordance with
40 the provisions of section twenty-eight hundred seven-nn of the public
41 health law.

42 § 3. This act shall take effect January 1, 2026. Effective immediate-
43 ly, the addition, amendment and/or repeal of any rule or regulation
44 necessary for the implementation of this act on its effective date are
45 authorized to be made and completed on or before such effective date.